

**DEPARTMENT EIGHT  
JUDGE WENDY GETTY  
707-207-7308  
TENTATIVE RULINGS SCHEDULED FOR  
THURSDAY, JULY 09, 2026**

***The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.***

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

---

**CAPITAL ONE v REBECCA HARRIS  
Case No. CL25-05722**

**Motion for Reconsideration**

**TENTATIVE RULING:**

Defendant's motion for reconsideration is DENIED.

A motion for reconsideration must be based on new or different facts, circumstances or law. (Code of Civil Procedure § 1008.) As to new or different facts, a motion for reconsideration must be based on newly discovered evidence which the moving party could not, with reasonable diligence, have discovered or produced. A party cannot simply relitigate a motion that was previously denied.

Defendant does not raise new or different facts that were not raised previously. Plaintiff's new motion confirms she had actual notice of the claimed debt and she confirms she reached out to the attorneys' office on August 11, 2025. Her underlying motion to vacate the judgment was based solely on the absence of actual notice.

Although Defendant may have been unaware of the court's tentative ruling system, she was provided a physical copy of the tentative ruling on the morning of the hearing and the case was passed in order for her to review the ruling. Defendant left the court without returning and was not present when her case was recalled at the end of the calendar.

---